



CHAPTER xxxi.

An Act to confirm a Provisional Order made by the Minister of Transport under the Nottinghamshire and Derbyshire Traction Act 1928 relating to the Nottinghamshire and Derbyshire Traction Company Trolley Vehicles.

A.D. 1933.

[18th July 1933.]

WHEREAS under the authority of section twelve of the Nottinghamshire and Derbyshire Traction Act 1928 the Minister of Transport has made the Provisional Order set out in the schedule to this Act annexed :

18 & 19
Geo. 5.
c. xciii.

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's Most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Nottinghamshire and Derbyshire Traction Company (Trolley Vehicles) Order Confirmation Act 1933.

Short title.

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Derbyshire Traction Company (Trolley Vehicles)
Order Confirmation Act, 1933.

A.D. 1933.

—
Confirma-
tion of
Order in
schedule.

2. The Order set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act.

SCHEDULE.

A.D. 1933.

NOTTINGHAMSHIRE AND DERBYSHIRE
TRACTION COMPANY (TROLLEY VEHICLES).

*Order authorising the Nottinghamshire and Derbyshire
Traction Company to use trolley vehicles upon certain
routes in the counties of Nottingham and Derby.*

1.—(1) This order may be cited as the Nottinghamshire and Derbyshire Traction Company (Trolley Vehicles) Order 1933. Short and collective titles.

(2) The Nottinghamshire and Derbyshire Traction Acts 1903 to 1928 and this order may be cited together as the Nottinghamshire and Derbyshire Traction Acts and Order 1903 to 1933.

2. In this order the following expressions have unless the subject or context otherwise requires the meanings hereinafter assigned to them (namely):— Interpretation.

“The Company” means the Nottinghamshire and Derbyshire Traction Company;

“The Act of 1928” means the Nottinghamshire and Derbyshire Traction Act 1928;

“Trolley vehicle” has the meaning assigned to it by section 4 (Interpretation) of the Act of 1928.

3.—(1) Subject to the provisions of this order the Company may use trolley vehicles upon the following routes in addition to any routes upon which they are already authorised to use trolley vehicles (that is to say):— Additional trolley vehicle routes.

In the county of Derby—

Route No. 1 (1 furlong 5·32 chains or thereabouts in length) in the parish and urban district of Ripley commencing in Nottingham Road at its junction with Beighton Street and proceeding along Beighton Street Park Road and New Street to and terminating at the junction of New Street with Nottingham Road;

Route No. 2 (2 chains or thereabouts in length) in the parish of Shipley and rural district of Basford commencing in Hassock Lane at its junction with Pit

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Lane and terminating in Pit Lane at a point 44 yards or thereabouts from its junction with Hassock Lane.

In the county of Nottingham—

Route No. 3 (2 chains or thereabouts in length) in the parish of Kimberley and rural district of Basford commencing in Main Street at its junction with Green's Lane and terminating in Green's Lane at a point 44 yards or thereabouts from its junction with Main Street;

Route No. 4 (2 chains or thereabouts in length) in the parish of Kimberley and rural district of Basford commencing in Eastwood Road at its junction with Station Road and terminating in Station Road at a point 44 yards or thereabouts from its junction with Eastwood Road;

Route No. 5 (2 chains or thereabouts in length) in the parish of Nuthall and rural district of Basford commencing in Nottingham Road at its junction with Watnall Road and terminating in Watnall Road at a point 44 yards or thereabouts from its junction with Nottingham Road;

Route No. 6 (2 chains or thereabouts in length) in the parish of Greasley and rural district of Basford commencing in Nottingham Road at its junction with Castle Street and terminating in Castle Street at a point 44 yards or thereabouts from its junction with Nottingham Road.

(2) The application of the provisions of the Act of 1928 to this order in accordance with subsection (1) of section 12 of that Act shall have effect with any necessary modification and so far only as the same are applicable for the purpose and have not been modified by the Road Traffic Act 1930.

Limiting
period for
exercise of
powers.

4. If within five years from the passing of the Act confirming this order the Company shall not have commenced to use trolley vehicles along any of the routes upon which the Company are by this order authorised to use trolley vehicles the powers conferred by this order with reference to the use of trolley vehicles along the route or routes along which the Company shall not have commenced to use trolley vehicles shall cease to be exerciseable as from the expiration of that period.

For pro-
tection of
Notting-
hamshire
county
council.

5.—(1) In this section the expression "the road works" means a widening of the carriage-way of Nottingham Road and works consequential on such widening (including the provision of a kerb channel and footpath) opposite the junction of such road with Watnall Road as indicated on the plan signed in

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duplicate by William Clarke Bryden on behalf of the Company A.D. 1933.
and by K. Tweedale Meaby on behalf of the Nottinghamshire
county council (in this section referred to as "the council").

(2) If the council shall at any time during the equipment of route No. 5 or within twelve calendar months after the completion thereof execute the road works the Company shall on the completion of the equipment of the said route or after the completion of the road works (whichever shall be the later) contribute and pay to the council for or towards the cost of the execution of the road works the sum of fifty pounds or the actual cost of the road works (whichever shall be the less).

(3) Any difference which may arise between the Company and the council under this section shall be referred to and determined by arbitration under the Act of 1928.

6. All costs charges and expenses of and incident to the Costs of
preparing for obtaining and confirming of this order or otherwise order.
in relation thereto shall be paid by the Company.

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